

Attachment 6 - Motion for Appointment of Counsel

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

Cory J. Bennett

(Name of plaintiff or plaintiffs)

Civil Action Number:

v.

The University of Texas at Austin; Emily Hsiao; James G. Scott;

(Case Number to be supplied
by the Intake Clerk)

Sally K. Ragsdale; Jay Bartroff; Kelli Bradley; Jeff Graves

(Name of defendant or defendants)

MOTION FOR APPOINTMENT OF COUNSEL

Comes now, Cory J. Bennett, Plaintiff in the above-styled and numbered matter, and respectfully requests appointment of counsel as provided by in ~~42 U.S.C. §2000e-5(f)(1)~~. In support thereof, Plaintiff will show the following:
28 U.S.C. § 1915(e)(1)

I. That Plaintiff has made a diligent effort to employ counsel.

[X] CONTACTED PRIVATE ATTORNEYS. (List all attorneys **who specialize in labor law, employment discrimination or civil rights** complaints you contacted and state why each would not represent you.)

Private attorneys were contacted but most did not respond. Others declined, lacked capacity, or required fees that were unaffordable. See Attachment 2.

[X] CONTACTED LEGAL AID ASSOCIATION. (Texas Rio Grande Legal Aid Inc.: (888) 988-9996 (State when this association was contacted and why it could not assist you.)

Legal-aid organizations contacted; declined, lacked capacity, or were not a fit. See Attachment 2.

[X] CONTACTED LOCAL LAWYER REFERRAL SERVICE. (San Antonio Bar Association Lawyer Referral Service: (210) 227-1853). (List the lawyers to whom you were referred, the attorneys you contacted, and why they could not assist you.)

Referred to Stephen Jon Moss; declined because case was outside practice. See Attachment 2.

II. Please state your level of education:

- [] Did not graduate from high school. (Specify highest grade completed)_____
- [] G.E.D. (Date acquired)_____
- [] High School Graduate. (Year graduated) _____
- [X] Some College. (Specify field of study)_____ B.S. Mathematics (in progress)
- [] College Graduate. (Specify field of study) _____
- [] Graduate Level Education (Specify level and field of study)_____

III. Please state your employment for the last five years beginning with your most current employment:

Employer: _____
Salary/Wages per Month: _____
Position: _____
Dates of Employment: _____

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Employer: _____
Salary/Wages per Month: _____
Position: _____
Dates of Employment: _____

IV. Plaintiff is financially unable to hire counsel for the reasons stated in the attached Application to Proceed In Forma Pauperis. **(Please complete the attached Application to Proceed In Forma Pauperis)**

I declare (or certify, verify, or state) under penalty of perjury that the foregoing is true and correct.

June 11, 2026

Date

Cary Bennett

Signature of Plaintiff

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

CORY J. BENNETT, Plaintiff,

Civil Action No. _____

v.

**THE UNIVERSITY OF TEXAS AT AUSTIN;
EMILY HSIAO; JAMES G. SCOTT; SALLY
K. RAGSDALE; JAY BARTROFF; KELLI
BRADLEY; and JEFF GRAVES**, Defendants.

ATTACHMENTS TO MOTION FOR APPOINTMENT OF COUNSEL

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Attachment 1

Declaration in Support of Motion for Appointment of Counsel

I, Cory J. Bennett, declare under penalty of perjury as follows:

1. I am the Plaintiff in this action. I submit this declaration in support of my motion for appointment of counsel.
2. I am financially unable to retain counsel. My financial circumstances are described in my Application to Proceed in Forma Pauperis and supporting financial affidavit. I cannot afford hourly counsel, litigation retainers, or non-contingency representation.
3. I have made diligent efforts to obtain counsel. Those efforts are summarized in Attachment 2.
4. Despite these efforts, I have not been able to secure representation. Attorneys and organizations either did not respond, declined, lacked capacity, could not represent an individual plaintiff, or required fees and retainers I could not afford.
5. This case involves federal disability-discrimination, retaliation, due-process, and First Amendment claims against a public university and individual state actors. It also requires handling university accommodation, grievance, and Student Conduct records; confidential student information; witness evidence; disability-related facts and records; and damages tied to enrollment, services, financial aid, and academic progress.
6. My disability-related limitations materially impair my ability to litigate this case pro se against represented state actors. I can draft pleadings and organize records, but I cannot adequately handle the procedural and evidentiary demands of this case without counsel, including discovery, identifying and interviewing witnesses, confidentiality issues, and timely responses to dispositive motions.

7. I request appointment of counsel under 28 U.S.C. § 1915(e)(1) and any other authority the Court deems applicable. If the Court requests them, I can provide additional records about my medical condition, disability, finances, or efforts to obtain counsel. Detailed medical records contain sensitive health information, and I can submit them separately under seal or as the Court directs.

I declare under penalty of perjury that the foregoing is true and correct.

Date: June 11, 2026

Signature: 

Cory J. Bennett

Attachment 2

Summary of Efforts to Obtain Counsel

Plaintiff remains unrepresented despite sustained efforts from October 2025 through June 2026 to obtain counsel. This table lists identifiable contacts from emails, intake confirmations, referral correspondence, phone notes, declination messages, or recollection.

Date	Attorney, Firm, or Organization	Result
▷ ...		
Oct. 10, 2025	Lento Law Firm	Paid consultation; no response.
Oct.–Nov. 2025	Disability Rights Texas	Declined; no capacity.
▷ ...		
Mar.–Apr. 9, 2026	Whitburn & Pevsner / Sean Pevsner	No response.
Mar. 30–May 27, 2026	Odediran Law	Declined; no capacity.
Apr. 16–18, 2026	Sanford Heisler Sharp McKnight	Declined; no capacity.
Apr. 17, 2026	Brown, Goldstein & Levy / Eve Hill	Declined.
Apr. 18, 2026	Stein & Vargas / Mary Vargas	No response.
Apr. 18, 2026	Kennedy Hunt	No response.
Apr. 18–May 8, 2026	GH Disability Law Group	Declined.
Apr. 18, 2026	Disability Rights Advocates	No response.
Apr. 18–20, 2026	National Center for Youth Law	No response.
Apr. 18; May 11, 2026	Center for Public Representation	No response.
Apr. 18–27, 2026	Democracy Forward Foundation	Declined.
Apr. 18–20, 2026	DREDF	Declined; no capacity; referral.
Apr. 18; May 3–4, 2026	Cirkiel Law Group / Martin Cirkiel	Declined.
Apr. 18–May 3, 2026	Disability Rights Bar Association	Referral.
Apr. 19, 2026	Eisenberg & Baum	No response.
Apr. 19–30, 2026	Fox & Robertson	Declined/referral.
Apr. 19–May 4, 2026	Public Justice	Referral.
Apr. 19, 2026	Glenn Agre Bergman & Fuentes / Reid Skibell	No response.
Apr. 20, 2026	Chandler & Shavin / Eliot Shavin	No response.
Apr. 20, 2026	TRE Legal / Timothy Elder	Referral.

Date	Attorney, Firm, or Organization	Result
Apr. 20–May 8, 2026	Undaunted Law Firm / Tomi Stoner	No fit.
Apr. 21, 2026	Relman Colfax	Declined; no capacity.
Apr. 23–29, 2026	Texas Legal Services Center / Julian Honor	Declined; no capacity.
Apr. 23–29, 2026	Wayne Krause Yang	Declined; no capacity.
May 1, 2026	Paul Grossman	No response.
May 10–26, 2026	Disability Rights Texas	Declined; no capacity; referral.
May 10–21, 2026	Charles Weiner Law	Declined.
May 10–22, 2026	Goodwin-Oquendo Law Firm	Declined; no capacity; referral.
May 11, 2026	Abdnour Weiker / Mark Weiker	Declined; not Texas-barred.
May 12–13, 2026	K Altman Law	Declined.
May 22, 2026	Disability Rights Texas / Brian East	No response.
May 26, 2026	FIRE	Declined; no capacity.
May 26, 2026	ACLU	Declined.
May 26–June 2, 2026	Texas RioGrande Legal Aid	No fit.
May 26–June 2, 2026	Drew Duncan	Declined.
May 27, 2026	Bazelon Center for Mental Health Law	No response.
May 28–June 1, 2026	Lawyer Referral Service of Central Texas / Stephen Jon Moss	Referral; no fit.
May 31, 2026	Allen Harris Law	Declined; no capacity.
May 31, 2026	Sergi & Associates	Declined.
June 3–4, 2026	Bach Law Firm / Jason Bach	No contingency; unaffordable.

▷ Gap markers show additional contacts Plaintiff cannot now identify individually.

Attachment 3

Request to Adjust Rule 12 Briefing

Plaintiff also requests that, if any Defendant files a motion under Federal Rule of Civil Procedure 12 before the Court has ruled on this Motion for Appointment of Counsel, the Court stay or adjust Plaintiff's response deadline until after this motion is resolved, or grant such other reasonable extension as the Court deems appropriate. Good cause exists because Plaintiff is proceeding pro se and in forma pauperis, has made sustained efforts to obtain counsel, and the anticipated Rule 12 issues are likely to include qualified immunity, individual-capacity liability under 42 U.S.C. § 1983, ADA Title II, Section 504, and the interaction between University grievance records and federal constitutional claims. Plaintiff does not seek delay for its own sake; he seeks a fair opportunity to respond if dispositive briefing begins before the Court resolves whether counsel should be requested under 28 U.S.C. § 1915(e)(1).